

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

7. SCOTT DAVID RUSSELL V. OLIVIA ELENA RUSSELL

23FL0133

On June 24, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served by mail on July 7th and July 9th. Because this is a post-judgment request, Petitioner filed the requisite Declaration Regarding Address Verification in compliance with Family Code § 215. The Department of Child Support Services (DCSS) is a party to the action, however there is no Proof of Service for them.

The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 7, 2026. Neither party appeared at the appointment.

Respondent filed and served her Responsive Declaration to Request for Order on September 2nd.

This matter is dropped from calendar due to Petitioner's failure to serve all parties to the action and his failure to appear at the CCRC appointment which was set at his request.

TENTATIVE RULING #7: THIS MATTER IS DROPPED FROM CALENDAR DUE TO PETITIONER'S FAILURE TO SERVE ALL PARTIES TO THE ACTION AND HIS FAILURE TO APPEAR AT THE CCRC APPOINTMENT WHICH WAS SET AT HIS REQUEST.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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8. ESTEFANIA SIMMONS V. RONALD SIMMONS

25FL0176

Petitioner filed a Request for Order (RFO) on March 20, 2026 seeking to bifurcate the issue of marital status and restoration of her former name. She concurrently filed the requisite FL-315. All required documents were served by mail on September 9, 2026.

On February 19, 2026, Respondent filed an RFO seeking visitation orders, spousal support, and attorney's fees. On April 10th and April 23rd, Respondent filed two more RFOs seeking custody and visitation orders along with spousal support orders. He did not file an Income and Expense Declaration with any of the aforementioned and there is no Proof of Service for any of the RFOs or any of the other required documents. All three RFOs are therefore, dropped from calendar due to lack of proper service.

On June 30, 2026, the parties attended a hearing on competing restraining orders against one another. The court denied Respondent's request for a restraining order against Petitioner but granted Petitioner's request for one against Respondent. The court made custody and visitation orders and then set the matter for hearing on the issues of bifurcation, spousal support and attorney's fees pursuant to the pending RFOs.

Petitioner filed a declaration and her Income and Expense Declaration on July 27, 2026. There is no Proof of Service for these documents therefore they have not been read or considered. She filed and served another declaration on September 9, 2026.

As previously stated, the RFOs for support and attorney's fees have been dropped from calendar due to the lack of proper service. Moreover, they are dropped due to Respondent's failure to file the proper paperwork. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3). Additionally, the party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Respondent did not file an Income and Expense Declaration with any of his RFOs; and the most recent Income and Expense Declaration the court does have from Respondent is dated March 30, 2026. Because his Income and Expense Declaration was not timely filed and is not current, his requests for spousal support and attorney's fees are dropped from calendar.